

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 05/22/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 4	24CV443623	Riley's Remodeling & Design v. Joseph and Geriann Shaw	MOTION TO DISQUALIFY Please control click or scroll down to Line 4
LINE 5	24CV445907	Jin Yin v. Xiaoxiao Liu	MOTION TO STRIKE Please control click or scroll down to Line 5
LINE 6	25CV464704	Dennis Perry v. Morgan Hill Farmers Market et al	DEMURRER Please control click or scroll down to Line 6

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LINE 7			MOTION: TRIAL PREFERENCE Plaintiff's Motion for Trial Preference pursuant to Code of Civil Procedure section 36(a) Notice is proper. No opposition. CCP section 36(a) provides that a party who is over 70 years of age may obtain a preferential trial setting if the Court finds: (1) the party has a substantial interest in the action as a whole; and (2) the health of the party is such that preference is necessary to prevent prejudicing the party's interest in the litigation. Here, Plaintiff has submitted evidence establishing that Plaintiff is over the age of 70 and has a substantial interest in the litigation. Plaintiff further submits evidence concerning Plaintiff's health condition and the risk that delay may impair Plaintiff's ability to meaningfully participate in trial and assist counsel in the presentation of the case. The showing is sufficient under CCP section 36(a). Once the statutory findings are made, trial preference is mandatory. (See <i>Swaithes v. Superior Court</i> (1989) 212 Cal.App.3d 1082, 1085; <i>Kline v. Superior Court</i> (1991) 227 Cal.App.3d 512, 518.) Accordingly, the motion is GRANTED. Pursuant to CCP section 36(f), the matter shall be set for trial not more than 120 days from the date of this order, absent a showing of physical disability of a party or attorney, or other exceptional circumstances stated in the record. The parties are ordered to appear at a trial setting conference on May 27, 2026 at 11:00 in Department 12 to set all related pretrial and trial dates consistent with this ruling. The minute order shall be deemed the order of the court.
LINE 8	25CV469650	Jane Doe v. Chaochin Lu, et al.	DEMURRER Demurrer to FAC is Unopposed and Sustained with 15 days leave to amend